

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alyssa Rogowski	Team: Squad #8	CCRB Case #: 201804501	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/04/2018 2:50 PM	Location of Incident: Food World supermarket parking lot	Precinct: 69	18 Mo. SOL 12/4/2019	EO SOL 12/4/2019	
Date/Time CV Reported Wed, 06/06/2018 4:33 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 06/06/2018 4:33 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Sica	16031	953402	069 PCT
2. POF Viviana Segovia	21202	959217	069 PCT
3. POM Scott Mark	27345	950823	069 PCT
4. SGT Daniel Guida	5358	941862	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Viviana Segovia	Force: Police Officer Viviana Segovia used physical force against Micah § 87(2)(b)	
B.POM Anthony Sica	Force: Police Officer Anthony Sica used physical force against Micah § 87(2)(b)	
C.POM Scott Mark	Force: Police Officer Scott Mark used physical force against § 87(2)(b)	
D.SGT Daniel Guida	Force: Sergeant Daniel Guida used physical force against § 87(2)(b)	

Case Summary

On June 6, 2018, § 87(2)(b) filed the following complaint in person at the CCRB.

On June 4, 2018, at approximately 2:50pm in the parking lot of the Food World supermarket located at 935 East 107th Street in Brooklyn, § 87(2)(b) assisted a friend with stealing from § 87(2)(b). § 87(2)(b) called 911 and when officers responded, he pointed out § 87(2)(b) as one of the thieves. Police Officer Viviana Segovia, Police Officer Anthony Sica, Police Officer Scott Mark, and Sergeant Daniel Guida, all of the 69th Precinct, grabbed § 87(2)(b) and forcibly took him to the ground (**Allegations A-D: Force,** § 87(2)(g)).

The investigation obtained video footage from surveillance cameras outside the Food World supermarket that captures this incident (Board Review 02).

Findings and Recommendations

Allegation (A) Force: Police Officer Viviana Segovia used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Anthony Sica used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Scott Mark used physical force against § 87(2)(b)

Allegation (D) Force: Sergeant Daniel Guida used physical force against § 87(2)(b)

§ 87(2)(b) recounted in his in-person statement that he and his friend were using the bottle-return machines in the parking lot of the Food World supermarket in Brooklyn (Board Review 01). After arguing with § 87(2)(b) his friend stole § 87(2)(b)'s receipt and gave both his own receipt and the stolen receipt to § 87(2)(b) to exchange for cash in the supermarket. § 87(2)(b) went inside to cash the receipts. When he exited, § 87(2)(b) saw § 87(2)(b) and two officers, identified through the investigation as PO Segovia and PO Sica, walking towards him. § 87(2)(b) pointed at § 87(2)(b) and told the officers that he was one of the men involved in the theft.

PO Segovia and PO Sica then approached § 87(2)(b) from his front and told him to put his hands behind his back. § 87(2)(b) had decided he was not going to let the officers put handcuffs on him without a fight. He actively resisted arrest by holding his arms against his sides and shaking his torso and shoulders back and forth, trying to free himself of the officers' grasp. After approximately 4-5 seconds, two additional officers, identified through the investigation as PO Mark and Sgt. Guida, joined the struggle. § 87(2)(b) stated that the officers held onto him and took him to the ground because he would not give up his hands to be handcuffed. He continued to resist once taken to the ground for about 25-30 seconds before allowing the officers to handcuff him. Although he said the officers "beat him" and "beat him up" during his interview, § 87(2)(b) never alleged that officers struck him or used any additional force against him.

§ 87(2)(b) sustained abrasions to his left pinky, left wrist, and left kneecap during this struggle. Photographs were taken at the CCRB of § 87(2)(b) injuries (Board Review 03-06). Medical records indicate that § 87(2)(b) went to § 87(2)(b) the day after the incident complaining off abrasions to his left arm and

knee and pain in his wrists. No serious injuries were noted and § 87(2)(b) was discharged with Tylenol.

Video footage of this incident was obtained from exterior surveillance cameras at the Food World supermarket and is embedded below (Board Review 07).



201804501_20180911_1049_DM.mp4

This video clip shows that PO Segovia and PO Sica grabbed § 87(2)(b) while he attempted to flee. PO Mark and Sgt. Guida then arrived and assisted PO Segovia and PO Sica in taking § 87(2)(b) to the ground and handcuffing him. The interaction lasted about two minutes. The footage shows that § 87(2)(b) resisted arrest by running away, flailing his arms, and resisting being taken to the ground. At no point in the footage did any officer appear to strike § 87(2)(b).

§ 87(2)(g)

NYPD Patrol Guide procedure 221-01 states that “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances” (Board Review 08).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one prior CCRB complaint, in which he was a victim of two allegations (Board Review 09):
 - § 87(2)(b)
- PO Viviana Segovia has been a member of the NYPD for three years. This is the first CCRB complaint to which she has been a subject (see officer history).
- PO Anthony Sica has been a member of the NYPD for six years and has been a subject in three CCRB complaints and five allegations, none of which was substantiated. He is also a subject in another pending CCRB complaint with two allegations (case #201708431). § 87(2)(g)

- PO Mark is also a subject in another pending CCRB complaint with two allegations (case #201801005). § 87(2)(g)

- § 87(2)(g)

- **[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]